

PSCI 4340: International Migration Law & Policies
University of Central Arkansas
Fall 2026

Instructor: Prof. Hyo-Won Shin (she/her)

Email: hshin@uca.edu

Lecture:

- Monday, Wednesday, and Friday 12:00-12:50 PM Irby Hall 216

Office Hours:

- Monday and Wednesday 2:00 PM - 3:00 PM Irby Hall 217H
 - Sign up: <https://calendly.com/hyoshin/officehours>
-

Course Description

This upper-division seminar examines the legal architecture governing human mobility across international borders. This course is divided into two sections. The first half (Weeks 1-7) provides a systematic grounding in international migration law: the treaties, conventions, institutional actors, and normative frameworks that constitute the global governance of migration. The second half of the course (Weeks 9-15) turns to comparative national policy that analyzes how states in different regions translate, and often departs from, international obligations through domestic immigration and asylum legislation.

Students will develop skills in legal analysis, comparative policy evaluation, and critical engagement with debates over sovereignty, human rights and belonging. By the end of the semester, students will be equipped to analyze migration governance from both international and domestic vantage points.

Course Goals

Upon successful completion of this course, students will be able to do the following:

- Explain the principal sources, institutions, and principles of international migration law, including the 1951 Refugee Convention, human rights treaty obligations, and customary international law.
- Distinguish among the legal categories of migrants – refugees, asylum seekers, stateless persons, labor migrants, and irregular migrants – and understand the distinct protections each category triggers.
- Critically analyze how states design and implement immigration and asylum policies, and explain variation across liberal democracies, emerging economies, and authoritarian contexts.
- Apply comparative and legal methodologies to evaluate case studies from North America, Europe, the Asia-Pacific, and the Global South.
- Construct well-supported written and oral arguments on contested migration law and policy questions.
- Engage with primary legal sources, including treaty texts, UN resolutions, court decisions, and national legislation.

Course Requirements and Assignments

The grade in the course will be determined by the following:

Assignment	Weight	Due
Participation & Weekly Reading Responses	10%	Ongoing
Mid-term Exam	20%	Week 8
Country Case Study Presentation	15%	Weeks 10-15
Policy Memo	15%	Week 12
Research Paper	20%	Week 15
Final Exam	20%	Week 16

- **Exams** (40 percent: 20 percent each)

There will be a **mid-term and a final exam**.

- o The mid-term will be an in-class essay exam covering materials from Weeks 1 to 7. Students will answer two of three short essay prompts and one longer analytical question.
 - o The final exam will be an in-class essay exam covering materials from Weeks 9 to 15. Students will answer two of three short essay prompts and one longer analytical question.
 - o **Mid-term exam: 10/14 (during class time)**
 - o **Final exam: 12/9 (Wednesday, 11:00AM-1PM)**
- **Country Case Study Presentation** (15 percent)
Each student selects a country (approved by Week 4) and presents a 15-minute analysis of its migration and asylum policy framework, including relevant legislation, institutional actors, key policy debates, and compliance with international obligations.
 - **Policy Memo** (15 percent)
Students write a 1,200-1,500-word policy memo directed at a specific government ministry or international body, recommending a concrete change to a migration or asylum policy and justifying it with reference to international law.
 - **Research paper** (20 percent)
At the end of the semester, students will turn in a capstone project based on their country case study presentation and policy memo. Students will merge these components into a rigorous, academic research paper that analyzes the gap between a state's international legal obligations and its domestic migration realities, while offering a comprehensively defended policy solution. The paper should be between 3,500-4000 words (excluding bibliography).
 - **Class Participation & Weekly Reading Responses** (10 percent)
Each week (except exam weeks), students submit a 200–300-word response to the assigned readings, posted to the Brightspace discussion board by 11:59PM the night before class. Responses should identify a key argument, and raise a critical question, or draw a connection to current event.

Students are expected to attend lectures having done the assigned readings and prepared to discuss them. Regular attendance is required but does not constitute full participation. To receive full participation points, students should actively engage in small-group discussions and be responsive to questions asked during lecture and section. Students are encouraged to ask clarifying questions of the instructor and of each other.

Students who feel uncomfortable speaking up in large groups are encouraged to participate more actively in small-group discussions to compensate for being less active in big-group discussions during lecture.

For reference, full attendance at all lectures without active participation will earn students no higher than a B (85%). Regular, active participation in lecture along with regular attendance is required to earn students an A (95%) in participation. Active participation can make up for some unexcused absences, but one should not be thought of as a substitute for the other.

Grade	Evaluation
“A” Contributor	• Full attendance (exception of one self-care day). • Student’s contribution in class discussion (small and/or large group discussions) reflects exceptional preparation as evidenced by frequent use of textual/material evidence. • <i>If this person were absent in class, the quality of the discussions would be diminished markedly.</i>
“B” Contributor	• High attendance. • Student’s contribution in class discussion reflects preparation as evidenced by some use of textual/material evidence. • <i>If this person were absent in class, the quality of the discussions would be diminished.</i>
“C” Contributor	• Some attendance. • Student’s contribution in class discussion reflects some preparation as evidenced by little use of textual/material evidence. • <i>If this person were absent in class, the quality of the discussions would be diminished somewhat.</i>
“D-F” Contributor	• Little or no attendance. • Student’s contribution in class discussion reflects no preparation as evidenced by no use of textual/material evidence.

Course Materials

There is no required textbook for this course. All readings will be made available on Brightspace. The instructor will provide guidance on how to read an academic article, but should the student need more assistance in tackling these readings, please ask. They are very challenging.

Grade scale

90-100%	A
80-89.99%	B
70-79.99%	C
60-69.99%	D
<60%	F

Late Policy

Students are expected to complete all assignments by the dates and times specified on the syllabus. **Late assignments will NOT be accepted.** If a student anticipates being unable to complete an assignment on time, the student should contact the instructor *in advance of the assignment due date*.

Scree-free Policy

In this class, the use of laptops, tablets, and phones is prohibited, with the exception of certain class sessions when we will use laptops for learning activities. Research shows that the use of laptops and phones in class

can have negative effects on learning because of the potential for distraction. If you have particular needs for using a device in class, please come talk to me separately.

Academic Honesty, including AI

The work that you submit in this class must be your own. Unless an assignment is explicitly designed to be collaborative, you are expected to work independently of other students. When you make use of external sources, you are required to cite them. When in doubt about whether a citation is necessary or not, provide a citation.

The use of AI in academic work is currently a subject of debate, and there is no definitive, universal rule for when it can and cannot be used. Personally, I believe AI can be used positively to help students achieve academic success. However, students must be entirely transparent about its use. Students should NEVER turn in an AI-generated assignment as-is, or with minor modifications, as your own work. Over-reliance on AI to complete your assignments not only violates UCA's academic integrity standards but also robs you of the opportunity to learn and grow as a scholar. If you choose to use AI tools for your coursework, you must clearly indicate that you used them and how they helped you. For example, if you use AI to complete an R assignment, you should include a note such as "I used ChatGPT to fix coding errors." Failure to disclose your use of AI will be reported as academic misconduct. If you have any questions about this policy, please reach out – I am happy to help!

The University of Central Arkansas affirms its commitment to academic integrity and expects all members of the university community to accept shared responsibility for maintaining academic integrity. Students in this course are subject to the provisions of the university's Academic Integrity Policy, approved by the Board of Trustees as Board Policy No. 709 on February 10, 2010, and published in the Student Handbook. Penalties for academic misconduct in this course may include a failing grade on an assignment, a failing grade in the course, or any other course-related sanction the instructor determines to be appropriate. Continued enrollment in this course affirms a student's acceptance of this university policy.

Recommended Study Habits

All of the class assignments will draw on the material covered in the lectures. Therefore, it is important to attend class lectures and to interact with the material during lecture through careful note-taking and good question-asking. In the event that you are unable to attend a class meeting, it is highly recommended that you obtain notes from a classmate. (Hint: make sure you have the contact information for a classmate!) If there is material that you are struggling with, it is highly recommended that you meet with the instructor in order to seek clarification.

Office Hours

Student office hours are generally first-come, first served opportunities to meet with the professor. The instructor will be available to answer questions via email, but do not expect a response for at least 24-36 hours. If the student wants to meet outside the instructor's office hours, please email me at hshin@uca.edu.

If you are unsure about how to word an email to your professor, read this blog post (be aware that it has some profanity): <https://medium.com/@lportwoodstacer/how-to-email-your-professor-without-being-annoying-af-cf64ae0e4087>

Preferred Pronouns

Please call me either **Professor/Dr. Shin**. My preferred pronouns are she/her/hers. In class, I will call you by the name that you use when introducing yourself to me. Over email, I will use the name that appears in your email address. If you prefer I use a different name, please let me know and I will be happy to

accommodate. I will try to default to the they/them pronouns when referring to students, but if you have other preferred pronouns, please let me know and I will try my best to accommodate.

Diversity Policy

It is the instructor's intent that students from all diverse backgrounds and perspectives be well served by this course, that students' learning needs be addressed both in and out of class, and that diversity within the classroom be viewed as a resource, strength, and benefit. The instructor will strive to present materials and activities in ways that respect and affirm such differences. The instructor expects the same from the students: while discomfort is an important part of the learning process, no one should feel unsafe in the classroom. The instructor will not create or allow space for offensive language or behavior related to differences in gender, race, age, national origin, ethnicity, gender identity and expression, immigration status, intellectual and physical disability, sexual orientation, income, faith, socio-economic class, family status, primary language, military experience, and political identification.

Classroom Behavior

There are several ways in which students can help make the classroom conducive to learning. First, students should treat one another with respect during classroom discussion. We will discuss contentious issues in this class, and if you find yourself disagreeing with a claim made by someone else, you should work on expressing that disagreement in a constructive and impersonal fashion. Second, students using laptop computers should be using them for class-related purposes. Other uses are distracting to your fellow students and hinder overall learning in the classroom.

Students with Disabilities

The University of Central Arkansas adheres to the requirements of the Americans with Disabilities Act. If you need an accommodation under this Act due to a disability, contact the UCA Office of Disability Services. The Disability Support Services Office is reachable at 501-450-3616.

Consult the University of Central Arkansas's Student Handbook for university policies on admissions, academic appeals, departments, UCA services, sexual harassment, and academic dishonesty/plagiarism.

Title IX Disclosure

If a student discloses an act of sexual harassment, discrimination, assault, or other sexual misconduct to a faculty member (as it relates to "student-on-student" or "employee-on-student"), the faculty member cannot maintain complete confidentiality and is required to report the act and may be required to reveal the names of the parties involved. Any allegations made by a student may or may not trigger an investigation. Each situation differs and the obligation to conduct an investigation will depend on those specific set of circumstances. The determination to conduct an investigation will be made by the Title IX Coordinator. For further information, please visit: <https://uca.edu/titleix>. *Disclosure of sexual misconduct by a third party who is not a student and/or employee is also required if the misconduct occurs when the third party is a participant in a university-sponsored program, event, or activity.

Course Evaluations

Student evaluations of a course and its professor are a crucial element in helping faculty achieve excellence in the classroom and the institution in demonstrating that students are gaining knowledge. Students may evaluate courses they are taking starting on the Monday of the thirteenth week of instruction [November 16th] through the end of finals week by logging in to myUCA and clicking on the Evals button on the top right.

Course Schedule

The following is our course schedule. Please note that this schedule is subject to change by the instructor in accordance with students' needs or course progression. All materials listed are required of all students. Those students interested in further background on any particular topic are encouraged to ask the instructor for additional readings and resources.

Week	Topic	Reading & Notes
PART I: INTERNATIONAL MIGRATION LAW (Weeks 1-7)		
Week 1	Introduction: What is Migration Law? Sovereignty, Human Rights, and Tension at the Core	1. Goodwin-Gill & McAdam, Ch. 1 2. Aleinikoff & Chetail, Ch. 1-2 3. Universal Declaration of Human Rights, G.A. Res. 217 (III) A, U.N. Doc. A/RES/217(III) (Dec. 10, 1948).
Week 2	Sources of International Migration Law: Treaties, Custom, Soft Law, and Institutional Frameworks	1. Aleinikoff & Chetail, Ch. 18 (pp. 305-316) 2. Alexander Betts, "Soft Law and the Protection of Vulnerable Migrants," 24 Georgetown Immigration Law Journal 533 (2010) 3. Statute of the International Court of Justice, Art. 38 4. IOM Constitution (Preamble, Articles 1, 2, 4)
Week 3	The 1951 Refugee Convention and 1967 Protocol: History, Architecture, and Scope	1. Goodwin-Gill & McAdam, Ch. 2-3 2. 1951 Convention Relating to the Status of Refugees 3. UNHCR, Handbook on Procedures and Criteria for Determining Refugee Status, paras. 1-110 Labor Day: No Class (Monday, 9/7)
Week 4	Defining Persecution and the Five Grounds: Well-Founded Fear in Practice	1. Goodwin-Gill & McAdam, Ch. 4 2. INS v. Cardoza-Fonseca, 480 U.S. 421 (1987) 3. Canada (AG) v. Ward [1993] SCR 4. UNHCR, Guidelines on International Protection Nos. 1 & 2 Country case study topic due this week
Week 5	Non-Refoulement: The Cornerstone Principle and Its Extraterritorial Reach	1. Goodwin-Gill & McAdam, Ch. 6 2. Hirsi Jamaa v. Italy, ECtHR (2012) 3. Human Rights Committee, General Comment No. 36 (2018), paras. 30-31 Research paper proposal due.
Week 6	International Human Rights Law and Migration Law: ICCPR, ICERD, CAT, and the Rights of Non-Citizens	1. Aleinikoff & Chetail, Ch. 10 2. UN Human Rights Committee, General Comment No. 15 (1986) 3. CAT, Arts. 1, 3 4. CERD General Recommendation No. 30 (2004)
Week 7	Statelessness, Labor Migration, and Gaps in Protection: The 1954/1961 Conventions, ILO Standards, and the ICRMW	1. Goodwin-Gill & McAdam, Ch. 8 2. 1954 & 1961 Statelessness Conventions (1954: Articles 1 and 31, 1961: Articles 1, 8, 9) 3. ICRMW (1990), Arts. 1-35 4. ILO Convention No. 97 (Articles 1 & 6) & No. 143 (Articles 1, 2, 3, 8, 10-12) 5. Aleinikoff & Chetail, Ch. 5 and Ch. 13
Week 8	Mid-Term Week	In-class mid-term exam (10/14) Fall Break: No Class (Friday, 10/16)
PART II: COMPARATIVE MIGRATION LAW AND POLICIES (Weeks 9-15)		
Week 9	Comparative Methods in Migration Law: How and Why States Diverge from International Norms	1. De Haas, Castles & Miller, The Age of Migration, Ch. 10 & 11 2. Joppke, 'Why Liberal States Accept Unwanted Immigration,' World Politics 50(2) (1998) 3. Boswell, 'Theorizing Migration Policy,' IMR (2007) Presentations Begin (Friday, 10/23)
Week 10	North America I – the United States: Asylum,	1. Immigration and Nationality Act (Sections

	Enforcement, the Changing Administration Priorities	101(a)(42), 208, 235(b)) 2. Matter of A-B-, 27 I&N Dec. 316 (2018) 3. Garland v. Dai (2021) 4. Massey et al. 'Why Border Enforcement Backfired.' <i>American Journal of Sociology</i> 121(5) (2016)
Week 11	North America II – Canada and Mexico: Contrasting Models of Refugee Reception and Irregular Migration	1. Immigration and Refugee Protection Act (Canada), ss. 96–101 2. Safe Third Country Agreement & 2023 Protocol 3. Cantalapiedra, 'The Mexican Asylum System: Between Protecting and Control,' <i>Frontera Norte</i> (2021)
Week 12	Europe I – The European Union: CEAS, Dublin, and the Crisis of Solidarity	1. EU Qualification Directive 2011/95/EU (Articles 2, 9, 10, 15, 24) 2. Dublin III Regulation (Articles 3, 13, 17, 27) 3. N.S. v. Secretary of State, CJEU (2011) 4. Thielemann, 'Why Refugee Burden-Sharing Initiatives Fail,' <i>Journal of Common Market Studies</i> 56(1) (2018) Policy memo due (Sunday, 11/15)
Week 13	Europe II – Germany and Hungary: Integration vs Illiberalism	1. German Asylum Act (Asylgesetz) (Articles 1, 3, 3a, 29) 2. Orbán, Viktor. "Speech at the 25 th Bálványos Summer University," July 26, 2014 3. Cas Mudde, 'The Far Right Today' (2019) (Chapter 2 and 5) 4. ECHR, Ilias & Ahmed v. Hungary (2019) Research paper draft due for peer review (Sunday, 11/22)
Week 14	The Asia-Pacific: Australia's Offshore Processing, Japan's Restrictive Asylum System, and South/Southeast Asian Responses	1. Australian Migration Act 1958, Part 2 (Sections 5, 189, 198AHA) 2. UNHCR, Rohingya Refugee Situation: Regional Overview (2024) 3. Kneebone, 'The Pacific Plan: The Provision of Effective Protection?' <i>IJRL</i> (2006) 4. McNevin, et al. "Hospitality as a Horizon of Aspiration," <i>Journal of Refugee Studies</i> 31(3) (2018) Thanksgiving Break: No Class (Wednesday (11/25) – Friday (11/27))
Week 15	The Global South & Synthesis: Hosting States, the Global Compacts, and the Future of Migration Governance	1. Zetter & Ruaudel, 'Refugees' Right to Work and Access to Labour Markets' (2016) 2. Betts et al., 'Refugee Economies in Kenya' (2018) 3. Global Compact for Safe, Orderly and Regular Migration (2018), Objectives 1–5 4. Global Compact on Refugees (2018), paras. 1–50 Final Presentations (Wednesday, 12/2) Research Paper Due (Sunday, 12/6)
Week 16	Finals Week	In-class final exam (Wednesday 12/9, 11:00AM-1PM)